PAYROLL SERVICES AGREEMENT

for the provision of payroll and compliance services

dated ____ March 2027

BETWEEN

NIMBUS LEARNING TECHNOLOGIES PRIVATE LIMITED
(as the Client)

AND

PAYNEST TECHNOLOGIES PRIVATE LIMITED
(as the Service Provider)

Client Reference: NLT/LEGAL/2027/031
Fictional sample agreement prepared for training and testing purposes only.

THIS PAYROLL SERVICES AGREEMENT (this "Agreement") is made on the date set out on the cover page (the "Effective Date")

BETWEEN:

(1) NIMBUS LEARNING TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at 4th Floor, Cyber Pearl, HITEC City, Hyderabad 500081, Telangana, India (the "Client"); and

(2) PAYNEST TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, having its registered office at Nest Towers, Outer Ring Road, Bellandur, Bengaluru 560103, Karnataka, India (the "Service Provider").

WHEREAS:

(A) The Client operates an online learning platform and employs approximately eight hundred (800) employees and four hundred (400) freelance tutors.

(B) The Service Provider provides payroll processing and statutory compliance services from data centres owned and operated by it in India.

NOW, THEREFORE, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement the following expressions have the following meanings:

"Authorised Users" means the employees and tutors of the Client who are permitted to use the self-service portal.

"Client Personal Data" means all Personal Data of the Client's employees and tutors processed by the Service Provider under this Agreement.

"Confidential Information" means all information of a confidential nature disclosed by either Party, including pricing, platform architecture and technical and security documentation.

"Fees" means the fees set out in Schedule 3.

"Security Incident" means any confirmed unauthorised access to, or disclosure, modification or loss of, Client Personal Data.

"Services" means the services described in Schedule 1.

1.2 Headings are for convenience only and do not affect interpretation.

1.3 This Agreement comprises these Clauses and the Schedules. If there is any conflict or inconsistency, Schedule 3 (Commercial Terms) prevails over the Clauses, and the Clauses prevail over Schedules 1 and 2.

2. TERM

2.1 This Agreement commences on the Effective Date and continues for an initial term of three (3) years, and thereafter renews for successive periods of one (1) year unless terminated in accordance with Clause 14.

3. SERVICES

3.1 The Service Provider shall provide the Services in accordance with Schedule 1 and Applicable Law.

3.2 The Client shall provide accurate payroll inputs by the twentieth (20th) day of each month.

4. SERVICE LEVELS

4.1 The Service Provider shall ensure 99.5% monthly availability of the self-service portal, excluding scheduled maintenance notified to the Client at least seventy-two (72) hours in advance.

4.2 If availability falls below the level in Clause 4.1, the Client shall be entitled to the service credits set out in Schedule 2, capped at ten percent (10%) of the monthly Fees. Service credits are the Client's sole and exclusive remedy for any failure to meet the availability level.

5. CLIENT OBLIGATIONS

5.1 The Client is responsible for the accuracy of all inputs and for obtaining any consents required from its employees and tutors.

5.2 The Client shall ensure that its Authorised Users keep their login credentials secure.

6. DATA PROTECTION

6.1 Each Party shall comply with the Digital Personal Data Protection Act, 2023.

6.2 The Service Provider shall process Client Personal Data only on the documented instructions of the Client and only in India.

7. FEES, INVOICING AND PAYMENT

7.1 The Service Provider shall issue invoices monthly in advance.

7.2 Subject to Clause 1.3, each invoice shall be payable within thirty (30) days of the invoice date.

7.3 Where any undisputed amount remains unpaid sixty (60) days after its due date, the Service Provider may suspend the Services on not less than ten (10) Business Days' written notice.

7.4 Interest shall accrue on overdue amounts at the rate permitted by law.

8. INFORMATION SECURITY AND SECURITY INCIDENTS

8.1 The Service Provider shall maintain ISO/IEC 27001 certification for the systems used to provide the Services.

8.2 The Service Provider shall notify the Client without undue delay and in any event within twenty-four (24) hours of confirming a Security Incident, and shall provide a written incident report within seventy-two (72) hours of that notification.

9. AUDIT

9.1 The Client may audit the Service Provider's compliance with this Agreement no more than

once in any twelve (12) month period, on not less than thirty (30) days' written notice, during business hours and at the Client's cost.

9.2 Audits shall be carried out by an independent auditor who is bound by confidentiality and is not a competitor of the Service Provider, and shall not extend to data relating to the Service Provider's other clients.

10. CONFIDENTIALITY

10.1 Each Party shall keep the other Party's Confidential Information confidential and use it only for the purposes of this Agreement.

10.2 The Service Provider's Confidential Information includes its pricing, platform architecture and security documentation.

10.3 The obligations in this Clause 10 do not apply to information that is public, already lawfully known to the recipient, independently developed, or required to be disclosed by law, and continue for three (3) years after termination.

11. INTELLECTUAL PROPERTY

11.1 The Service Provider retains all rights in its platform. The Client retains all rights in Client Personal Data and in reports generated from it.

12. INDEMNIFICATION

12.1 Each Party shall indemnify the other against losses arising from third-party claims to the extent caused by the indemnifying Party's proven breach of this Agreement, negligence or wilful misconduct.

12.2 The indemnified Party shall notify the indemnifying Party promptly, allow it to control the defence and provide reasonable assistance. This Clause 12 is subject to Clause 13.

13. LIMITATION OF LIABILITY

13.1 Each Party's aggregate liability arising out of or in connection with this Agreement shall not exceed the total Fees paid or payable in the twelve (12) months immediately preceding the event giving rise to the claim.

13.2 Neither Party shall be liable for any indirect, special or consequential loss, or for any loss of profit, revenue or goodwill.

14. TERM AND TERMINATION

14.1 The Client may terminate this Agreement for convenience on not less than ninety (90) days' written notice to the Service Provider.

14.2 Either Party may terminate this Agreement for material breach if the breach is not remedied within thirty (30) days of written notice.

14.3 No Fees paid for Services already performed shall be refundable on termination.

15. RETURN AND DELETION OF CLIENT DATA

15.1 Within thirty (30) days of termination or expiry, the Service Provider shall return Client Personal Data in a standard machine-readable format and delete it from its production systems.

15.2 Backup copies shall be purged in the next scheduled backup rotation, and the Service Provider shall issue a certificate of deletion on request.

16. GOVERNING LAW AND DISPUTE RESOLUTION

16.1 This Agreement is governed by the laws of India.

16.2 Any dispute shall be referred to arbitration under the Arbitration and Conciliation Act, 1996 before a sole arbitrator. The seat of arbitration shall be New Delhi and the language shall be English.

17. GENERAL

17.1 Neither Party may assign this Agreement without the prior written consent of the other Party.

17.2 This Agreement is the entire agreement between the Parties in relation to its subject matter.

IN WITNESS WHEREOF the Parties have executed this Agreement on the date set out on the cover page.

For and on behalf of	For and on behalf of
NIMBUS LEARNING TECHNOLOGIES PRIVATE LIMITED	**PAYNEST TECHNOLOGIES PRIVATE LIMITED**
Signature: _____	Signature: _____
Name: _____	Name: _____
Designation: Chief Operating Officer	Designation: General Counsel
Date: _____	Date: _____

SCHEDULE 1 - DESCRIPTION OF SERVICES

(a) Monthly payroll processing for employees, including allowances, deductions, bonuses and full and final settlements.

(b) Monthly settlement of freelance tutor fees based on session data supplied by the Client, including tax deducted at source under section 194J.

(c) Statutory compliance filings for provident fund, employees' state insurance and professional tax.

(d) A self-service portal. The Client may add Authorised Users without limit during the Term at no additional platform charge; per-person processing fees under Schedule 3 continue to apply.

SCHEDULE 2 - SERVICE CREDITS

(a) Availability of 99.5% or higher: no service credit.

(b) Availability of 99.0% or higher but below 99.5%: service credit of five percent (5%) of the monthly Fees.

(c) Availability below 99.0%: service credit of ten percent (10%) of the monthly Fees.

SCHEDULE 3 - COMMERCIAL TERMS

(a) Implementation fee: INR 2,40,000 (Rupees Two Lakh Forty Thousand), payable on go-live.

(b) Monthly fee: INR 120 (Rupees One Hundred and Twenty) per employee and INR 60 (Rupees Sixty) per tutor processed.

(c) Payment terms: notwithstanding Clause 7.2, each invoice shall be payable within ninety (90) days of its receipt by the Client's accounts department.

(d) All Fees are exclusive of goods and services tax.